

injunctive power, not, as here, a claim for monetary damages. While it is clear that the doctrine of *Ex parte Young* is of no aid to a plaintiff seeking damages from the public treasury, *Edelman v. Jordan*, *supra*; *Kennecott Copper Corp. v. State Tax Comm'n*, 327 U. S. 573 (1946); *Ford Motor Co. v. Dept. of Treasury*, 323 U. S. 459 (1945); *Great Northern Life Insurance Co. v. Read*, 322 U. S. 47 (1944), damages against individual defendants are a permissible remedy in some circumstances notwithstanding the fact that they hold public office. *Myers v. Anderson*, 238 U. S. 368 (1915). See generally *Monroe v. Pape*, 365 U. S. 167 (1961); *Moor v. County of Alameda*, 411 U. S. 693 (1973). In some situations a damage remedy can be as effective a redress for the infringement of a constitutional right as injunctive relief might be in another.

Analyzing the complaints in light of these precedents, we see that petitioners allege facts that demonstrate they are seeking to impose individual and personal liability on the *named defendants* for what they claim—but have not yet established by proof—was a deprivation of federal rights by these defendants under color of state law. Whatever the plaintiffs may or may not be able to establish as to the merits of their allegations, their claims, as stated in the complaints, given the favorable reading required by the Federal Rules of Civil Procedure, are not barred by the Eleventh Amendment. Consequently, the District Court erred in dismissing the complaints for lack of jurisdiction.

III

The Court of Appeals relied upon the existence of an absolute “executive immunity” as an alternative ground for sustaining the dismissal of the complaints by the District Court. If the immunity of a member of the execu-

tive branch is absolute and comprehensive as to all acts allegedly performed within the scope of official duty, the Court of Appeals was correct; if, on the other hand, the immunity is not absolute but rather one that is qualified or limited, an executive officer may or may not be subject to liability depending on all the circumstances that may be revealed by evidence. The concept of the immunity of government officers from personal liability springs from the same root considerations that generated the doctrine of sovereign immunity. While the latter doctrine—that the “King can do no wrong”—did not protect all government officers from personal liability, the common law soon recognized the necessity of permitting officials to perform their official functions free from the threat of suits for personal liability.⁴ This

⁴ In England legislative immunity was secured after a long struggle, by the Bill of Rights of 1689: “That the Freedom of Speech, and Debates or Proceedings in Parliament, ought not to be impeached or questioned in any Court or Place out of Parliament,” 1 W. & M., Sess. 2, c. 2. See *Stockdale v. Hansard*, 9 Ad. & E. 1, 113–114, 112 Eng. Rep. 1112, 1155–1156 (Q. B. 1839). The English experience, of course, guided the drafters of our “Speech or Debate” Clause. See *Tenney v. Brandhove*, 341 U. S. 367, 372–375 (1951); *United States v. Johnson*, 383 U. S. 169, 177–178, 181 (1966); *United States v. Brewster*, 408 U. S. 501 (1972).

In regard to judicial immunity, Holdsworth notes: “In the case of courts of record . . . it was held, certainly as early as Edward III’s reign, that a litigant could not go behind the record, in order to make a judge civilly or criminally liable for an abuse of his jurisdiction.” 6 W. Holdsworth, *A History of English Law* 235 (1927). The modern concept owes much to the elaboration and restatement of Coke and other judges of the sixteenth and early seventeenth centuries. *Id.*, at 234 *et seq.* See *Floyd v. Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (K. B. 1607). The immunity of the Crown has traditionally been of a more limited nature. Officers of the Crown were at first insulated from responsibility since the King could claim the act as his own. This absolute insulation was gradually eroded. Statute of Westminster I, 3 Edw. 1, c. 24 (1275) (re-

official immunity apparently rested, in its genesis, on two mutually dependent rationales:⁵ (1) the injustice, particularly in the absence of bad faith, of subjecting to liability an officer who is required, by the legal obligations of his position, to exercise discretion; (2) the danger that the threat of such liability would deter his willingness to execute his office with the decisiveness and the judgment required by the public good.

In this country, the development of the law of immunity for public officials has been the product of constitutional provision as well as legislative and judicial processes. The Federal Constitution grants absolute immunity to Members of both Houses of the Congress with respect to any speech, debate, vote, report, or action done in session. Art. I, § 6. See *Gravel v. United States*, 408 U. S. 606 (1972); *United States v. Brewster*, 408 U. S. 501 (1972); and *Kilbourn v. Thompson*, 103 U. S. 168 (1881). This provision was intended to secure for the Legislative Branch of the Government the freedom from executive and judicial encroachment which

pealed); Statute of Westminster II, 13 Edw. 1, c. 13 (1285) (repealed). The development of liability, especially during the times of the Tudors and Stuarts, was slow; see, e. g., Public Officers Protection Act, 7 Jac. 1, c. 5 (1609) (repealed). With the accession of William and Mary, the liability of officers saw what Jaffe has termed "a most remarkable and significant extension" in *Ashby v. White*, 1 Bro. P. C. 62, 1 Eng. Rep. 417 (H. L. 1704), reversing 6 Mod. 45, 87 Eng. Rep. 808 (Q. B. 1703). Jaffe, *Suits Against Governments and Officers: Sovereign Immunity*, 77 Harv. L. Rev. 1, 14 (1963); A. Dicey, *The Law of the Constitution* 193-194 (10th ed. 1959) (footnotes omitted). See generally *Barr v. Matteo*, 360 U. S. 564 (1959). Good-faith performance of a discretionary duty has remained, it seems, a defense. See Jaffe, *Suits Against Governments and Officers: Damage Actions*, 77 Harv. L. Rev. 209, 216 (1963). See also *Spalding v. Vilas*, 161 U. S. 483, 493 *et seq.* (1896).

⁵ Jaffe, *Suits Against Governments and Officers: Damage Actions*, 77 Harv. L. Rev., at 223.

had been secured in England in the Bill of Rights of 1689 and carried to the original Colonies.⁶ In *United States v. Johnson*, 383 U. S. 169, 182 (1966), Mr. Justice Harlan noted:

"There is little doubt that the instigation of criminal charges against critical or disfavored legislators by the executive in a judicial forum was the chief fear prompting the long struggle for parliamentary privilege in England and, in the context of the American system of separation of powers, is the predominate thrust of the Speech or Debate Clause."

Immunity for the other two branches—long a creature of the common law—remained committed to the common law. See, e. g., *Spalding v. Vilas*, 161 U. S. 483, 498-499 (1896).

Although the development of the general concept of immunity, and the mutations which the underlying rationale has undergone in its application to various positions are not matters of immediate concern here, it is important to note, even at the outset, that one policy consideration seems to pervade the analysis: the public interest requires decisions and action to enforce laws for the protection of the public. Mr. Justice Jackson expressed this general proposition succinctly, stating "it is not a tort for government to govern." *Dalehite v. United States*, 346 U. S. 15, 57 (1953) (dissenting opinion). Public officials, whether governors, mayors or police, legislators or judges, who fail to make decisions when

⁶ Mr. Justice Frankfurter noted in *Tenney v. Brandhove*, 341 U. S., at 373: "The provision in the United States Constitution was a reflection of political principles already firmly established in the States. Three State Constitutions adopted before the Federal Constitution specifically protected the privilege." See *Coffin v. Coffin*, 4 Mass. 1, 27 (1808). See also *Kilbourn v. Thompson*, 103 U. S. 168, 202 (1881).

they are needed or who do not act to implement decisions when they are made do not fully and faithfully perform the duties of their offices.⁷ Implicit in the idea that officials have some immunity—absolute or qualified—for their acts, is a recognition that they may err. The concept of immunity assumes this and goes on to assume that it is better to risk some error and possible injury from such error than not to decide or act at all. In *Barr v. Matteo*, 360 U. S. 564, 572–573 (1959), the Court observed, in the somewhat parallel context of the privilege of public officers from defamation actions: “The privilege is not a badge or emolument of exalted office, but an expression of a policy designed to aid in the effective functioning of government.” See also *Spalding v. Vilas*, 161 U. S., at 498–499.

For present purposes we need determine only whether there is an absolute immunity, as the Court of Appeals determined, governing the specific allegations of the complaint against the chief executive officer of a State, the senior and subordinate officers and enlisted personnel of that State’s National Guard, and the president of a state-controlled university. If the immunity is qualified,

⁷ For example, in *Floyd v. Barker*, *supra*, Coke emphasized that judges “are only to make an account to God and the King” since a contrary rule “would tend to the scandal and subversion of all justice. And those who are the most sincere, would not be free from continual calumniation . . .” 12 Co. Rep., at 25, 77 Eng. Rep., at 1307. See also *Yaselli v. Goff*, 12 F. 2d 396, 399 (CA2 1926), *aff’d per curiam*, 275 U. S. 503 (1927). In *Spalding v. Vilas*, 161 U. S., at 498, the Court noted:

“In exercising the functions of his office, the head of an Executive Department, keeping within the limits of his authority, should not be under an apprehension that the motives that control his official conduct may, at any time, become the subject of inquiry in a civil suit for damages. It would seriously cripple the proper and effective administration of public affairs as entrusted to the executive branch of the government, if he were subjected to any such restraint.”

not absolute, the scope of that immunity will necessarily be related to facts as yet not established either by affidavits, admissions, or a trial record. Final resolution of this question must take into account the functions and responsibilities of these particular defendants in their capacities as officers of the state government, as well as the purposes of 42 U. S. C. § 1983. In neither of these inquiries do we write on a clean slate. It can hardly be argued, at this late date, that under no circumstances can the officers of state government be subject to liability under this statute. In *Monroe v. Pape, supra*, MR. JUSTICE DOUGLAS, writing for the Court, held that the section in question was meant "to give a remedy to parties deprived of constitutional rights, privileges and immunities by an official's abuse of his position." 365 U. S., at 172. Through the Civil Rights statutes, Congress intended "to enforce provisions of the Fourteenth Amendment against those who carry a badge of authority of a State and represent it in some capacity, whether they act in accordance with their authority or misuse it." *Id.*, at 171-172.

Since the statute relied on thus included within its scope the "[m]isuse of power, possessed by virtue of state law and made possible only because the wrongdoer is clothed with the authority of state law," *id.*, at 184 (quoting *United States v. Classic*, 313 U. S. 299, 326 (1941)), government officials, as a class, could not be totally exempt, by virtue of some absolute immunity, from liability under its terms. Indeed, as the Court also indicated in *Monroe v. Pape, supra*, the legislative history indicates that there is no absolute immunity. Soon after *Monroe v. Pape*, Mr. Chief Justice Warren noted in *Pierson v. Ray*, 386 U. S. 547 (1967), that the "legislative record [of § 1983] gives no clear indication that Congress meant to abolish wholesale all common-law immunities," *id.*, at 554. The Court had